

25STCV04127 25STCV04127

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV04127 Hearing Date: August 6, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV04127

CHRISTIAN

ARIAS GARIBAY, et al. vs GENERAL MOTORS, LLC.

August

6, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFFS' MOTION TO STAY PROCEEDINGS.

RULING:

The Court denies the Motion.

Defendant to give notice.

I.

BACKGROUND

On February 13, 2025, CHRISTIAN ARIAS GARIBAY and SALVADOR C. GARIBAY (Plaintiffs) filed a Lemon Law Complaint against GENERAL MOTORS LLC (Defendant), alleging Causes of Action under the Song-Beverly Consumer Warranty Act (Civ. Code §§ 1790-1795.8), along with a Fifth Cause of Action for Fraudulent Inducement - Concealment.

Plaintiffs allege purchasing, with warranty provisions, a 2018 GMC Sierra 1500 Denali, which Defendant manufactured and that had defects, including transmission, engine, and electrical. Plaintiffs further allege that Defendant failed to repair the vehicle within a reasonable number of attempts and did not promptly replace it or make restitution.

On June 23, 2026, Plaintiffs filed the Motion seeking an Order staying this action, pending an appeal in another case, on the issue whether Code of Civil Procedure section 871.26 is retroactive after a manufacturer's post-filing election. (Motion, 3:9-11.)

Defendant filed an Opposition asserting that a stay is not supported by law and the strategy is to delay.

II.

LEGAL STANDARD

“ ‘Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency.’ ” (St. Paul Fire & Marine Ins. Co. v. AmerisourceBergen Corp. (2022) 80 Cal.App.5th 1, 14.) Trial courts have inherent power to stay proceedings for economy of time and effort, interests of justice, or judicial efficiency. (Koenig v. Centralia Ltd. Invs. (2025) 112 Cal.App.5th 1174, 1191.)

III.

ANALYSIS

Plaintiffs seek an Order staying this case pending an appellate application in another action-- Price v. General Motors, number B353231. They reason that a stay would serve the interests of economy and avoid reversals after the legal precedent is in place.

Defendant cites case law requiring unsatisfied factors for stays. (Opposition, pp. 4-6.) Defendant also asserts that the Motion is part of a delay strategy, and procedurally objects to Plaintiffs' failing to request judicial notice of other case records (California Rule of Court 3.1306).

Even where there is no automatic stay pending appeal, judges can exercise discretion to continue or stay proceedings until an appeal is decided. (Reed v. Superior Court (2001) 92 Cal.App.4th 448, 455.) A trial court does not abuse discretion in staying litigation pending an appeal of a case involving the same issues. (California Canning Mach. Co. v. Superior Court (1935) 3 Cal.2d 606, 608.)

Here, the Court reasons that staying this case pending an appellate ruling on a retroactivity issue in relation to section 871.26, would be unjustified delay in this case and would be undesirable as a public policy. Specifically, several issues of first impression exist as to that section, such that numerous Lemon Law cases could be stalled without prosecution, pending appellate decisions interpreting section 871.26. Specifically, the list of some novel issues encountered by this Court, so far, regarding section 871.26, helps illustrate how a policy of staying cases pending appeals in unrelated cases would severely impact the Court's ability to manage its calendar:

1.

Documents scope of section 871.26, subdivision (h).

2.

Extent of applicability of the Discovery

Act that has subsumed the entire field pertaining to the gathering evidence in

preparation for trial. (Pillsbury, Madison & Sutro v. Schectman (1997) 55 Cal.App.4th 1279, 1288.)

3.

Extent of the discovery stay, depending on the documents scope. (See Code Civ. Proc., § 871.26, subd. (e) (“all other discovery shall be stayed until mediation is concluded.”).)

4. Applicability

of Discovery Act addressing mootness from late-served discovery responses. (See generally Sinaiko Healthcare Consulting, Inc. v. Klugman (2007) 148 Cal.App.4th 390, 409; County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 256; St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 778.)

5.

Any preemption of discovery objections, like trade secrets, or protective orders. (See, e.g., Evid. Code, § 1061, subd. (b)(1) [allowing owners of trade secrets to move for protective orders limiting use and dissemination].)

6.

Whether motions under section 871.26 seeking document production would need to show the documents withheld as under the Discovery Act. (See Bd. of Registered Nursing v. Superior Court (2021) 59 Cal.App.5th 1011, 1033 [citing Code Civ. Proc., § 2031.320].)

7.

Whether contentions about legislative interpretation and delay for mutual settlement efforts could be “good cause” in avoidance of monetary sanctions. (See Code Civ. Proc., § 871.26, subd. (j)).

8.

Whether Code of Civil Procedure section 871.21, as a statute of repose, can be subject to any exceptions such as tolling or delayed discovery. (See generally Inco Dev. Corp. v. Superior Court (2005) 131 Cal.App.4th 1014, 1020 [whether tolling exceptions apply can depend upon the particular statute of repose].)

Issues of legislative

interpretation would involve pure questions of law that the reviewing courts independently review de novo, without any deference to trial courts. (E.g., *Wolf v. CDS Devco* (2010) 185 Cal.App.4th 903, 913; *Regents of Univ. of Cal. v. Superior Court* (1999) 20 Cal.4th 509, 531.) Furthermore, any concern of avoiding appellate reversals is not substantial as to Lemon Law cases that mostly settle without appeals.

IV.

CONCLUSION

Therefore, the Court denies the Motion, in its discretion.